

		plaintiff submits the declaration of Garcia with the opposition to the motion. (ROA 106.) Garcia declares plaintiff's counsel gave him the address for service and on the day reflected on the POS, he went to the address and personally served defendant with the summons and complaint and other documents, including plaintiff's application for a right to attach order. Defendant's conclusory declaration, "I was not personally served with the summons and complaint on November 20, 2025, or on any other date" and "[n]o process server personally handed me the summons and complaint" (ROA 91) is not credible. The court's minute order of March 6, 2026 (ROA 29) reflects defendant was present with her daughter at the hearing on plaintiff's application for the right to attach order. The court denied defendant's request for a continuance of the hearing based on defendant's representation she only learned of the action after being in China from "the end of December to the end of February." The court noted defendant was personally served on November 20, 2025 and "the summons clearly states defendant has 30 days to file an answer" and no answer was on file at the time of the hearing. Given defendant's appearance at the hearing on the application for the right to attach order and the court's comments to the defendant, the court rejects defendant's contention she did not have actual notice of the action in time to defend. Default was not entered until March 25, 2026. Even if she could not file a responsive pleading within the time required after service of the summons and complaint, she had ample time to file a responsive pleading after the hearing where she was placed on notice by the court. Clerk to give notice.
5	Haddadin vs. Labella 30-2025-01500533-CU-FR-CJC	Motion to Set Aside/Vacate Default and Judgment Defendant Robert LaBella's Motion for Relief from Entry of Default is DENIED. Defendant has failed to establish a proper ground for relief from default. Defendant's motion argues he was unable to attend a case management conference. Default was entered due to his failure to file an answer, and he has not shown his failure to file an answer was due to mistake, neglect, or inadvertence pursuant to Code of

		Civil Procedure, section 473 subdivision (b); invalid service pursuant to Section 473 subdivision (e); or for extrinsic fraud or mistake. (See <i>Sporn v. Home Depot USA, Inc.</i> (2005) 126 Cal.App.4th 1294, 1300.) Clerk to give notice.
6	Bank Of America, N.A. vs. Yun 30-2022-01274061-CU-CL-CJC	Motion to Set Aside/Vacate Dismissal and Enter Stipulated Judgment Defendant, Bank of America N.A.'s motion for an order vacating the dismissal of the action and entering judgment against defendant Sun M. Yun under the terms of the stipulation agreement between the parties is GRANTED. The court dismissed the case with a reservation of jurisdiction under Code of Civil Procedure section 664.6 on 3/14/2023. The dismissal is VACATED. Defendant is ORDERED to submit a proposed judgment for \$10,060.00, consisting of \$9,041.50 in unpaid principal plus court costs of \$1,018.50 claimed in memo of costs, within 5 days. Clerk to give notice.
7	Providence Capital Funding, Inc. vs. Lozamira Inc., a California Corporation 30-2025-01484900-CU-BC-CJC	Motion to Set Aside/Vacate Default Judgment Defendants' Motion to Vacate Default Judgment is DENIED. Plaintiff's objections to defendants' declaration are SUSTAINED. Defendants Lozamira Inc.; Rosa Lozano; MA E. Miramontes Gamboa also known as Maria Miramontes and as Enriqueta Miramontes; and Gerardo Lozano, Jr. move to vacate the default judgment entered against them on 4/27/2026 pursuant to Code of Civil Procedure sections 473, subdivisions (b) and (d), and 473.5, and on equitable grounds of extrinsic fraud. Defendants' motion is not accompanied by admissible evidence. Nor is it accompanied by a proposed answer. (See Code Civ. Proc., §§ 473, subd. (b), 473.5 subd. (b).) In addition, defendants filed the instant motion in pro per. However, "a corporation cannot represent itself in a court of record either in propria persona or through an officer or agent who is not an attorney." (<i>Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.</i> (2002) 99 Cal.App.4th 1094, 1101.)